

23TRCV03261 23TRCV03261

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CP%2C07%2F02%2F2026

Source SHA-256: 084b7837bb4747211b7009803518c5b2a52a718a2b918a1cd9336ce9c5aa97aa

Case Number: 23TRCV03261 Hearing Date: July 2, 2026 Dept: P

Motion for Summary Judgment or Summary Adjudication

Moving Party: Defendants Westin Operator LLC (DOE 1) and Wesco Specialist Inc. (DOE 2)

Responding Party: Plaintiff Sammy Kiflu

RULING

The court considered the moving papers and opposition. Moving Defendants' Motion for Summary Judgment is GRANTED.

PROCEDURAL ISSUES

Pursuant to Code of Civil Procedure Section 437c(b)(2), an opposition to a motion for summary judgment must be served and filed "not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise."

Here, the hearing on the instant motion is scheduled for July 2, 2026, and Plaintiff filed his opposition on June 23, 2026. Therefore, Plaintiff's opposition is untimely.

Further, Code of Civil Procedure Section 437c(b)(3) provides:

"The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion."

(Code Civ. Proc., Section 437c(b)(3).)

Here, Plaintiff has not filed a separate statement, instead attempting to include one in his opposition brief. While Plaintiff has pointed to multiple material facts as being disputed, Plaintiff has not provided any supporting evidence.

Therefore, the court finds that Plaintiff's opposition is procedurally defective pursuant to Code of Civil Procedure Section 437c(b). The court will not address Plaintiff's request for sanctions.

PROCEDURAL BACKGROUND

On October 4, 2023, Plaintiff Sammy Kiflu ("Plaintiff") filed a complaint against Defendants The Westin Los Angeles Airport, Marriott International, Inc., Wesco Transportation LLC, John Doe, and DOES 1 through 100, inclusive, alleging five causes of action for: (1) Assault; (2) Battery; (3) Intentional Infliction of Emotional Distress; (4) Negligence; and (5) Negligent Hiring, Supervision, and Retention. Plaintiff's first three causes of action are alleged only against Defendant John Doe.

On May 30, 2024, Plaintiff filed an amendment identifying Defendant Westin Operator LLC ("Westin Operator") as DOE 1. On June 7, 2024, Plaintiff filed an amendment identifying Defendant Wesco Specialist Inc. ("Wesco Specialist") as DOE 2.

On April 9, 2026, Defendants Westin Operator and Wesco Specialist (collectively, "Moving Defendants") filed the instant motion for summary judgment or summary adjudication. On June 18, 2026, Moving Defendants filed a Notice of Non-Receipt of Opposition to Moving Defendants' motion. On June 23, 2026, Plaintiff filed an opposition.

On April 9, 2026, Moving Defendants also filed a motion to seal.

FACTUAL BACKGROUND

On April 5, 2022, Plaintiff chased after a moving shuttle at Los Angeles International Airport ("LAX") driven by Defendant John Doe and subsequently boarded the shuttle. (UMF No. 4.) After Defendant John Doe informed Plaintiff that he could not be transported by the shuttle, Defendant John Doe exited the shuttle and stood nearby on the sidewalk. (UMF No. 5.) Plaintiff remained on the shuttle, then exited and confronted Defendant John Doe. (UMF No. 6.) After Defendant John Doe reiterated to Plaintiff that he would not be transported by the shuttle, Plaintiff attempted to re-enter the shuttle. (UMF Nos. 7-8.) Plaintiff attempted to board the shuttle as Defendant John Doe attempted to close the shuttle's doors to prevent Plaintiff's entry, allegedly injuring Plaintiff. (UMF No. 9.)

Defendant John Doe was hired, trained, supervised, and managed by Wesco Specialist. (UMF No. 3.) As a condition of his employment with Wesco Specialist, Defendant John Doe agreed to having no license suspensions or disqualifications, no felony charges, no reckless, careless, or exhibition driving charges within the past five years, and no at-fault motor vehicle accidents within the previous three years. (UMF No. 10.) Wesco Specialist conducted a background screening of Defendant John Doe's criminal history before hiring him, which did not reveal any concerns. (UMF No. 11.) Defendant John Doe received Wesco Specialist's Policy Against Harassment and Personal Appearance and Behavior and completed required trainings, including two titled "Sexual Harassment and Abusive Conduct Prevention" and "Practice Safe Driving, Injury & Safety Reporting." (UMF No. 12.) During the duration of Defendant John Doe's employment with Wesco Specialist, Defendant John Doe was not the subject of any complaints, disciplinary actions, or reports of misconduct. (UMF No. 13.)

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying

fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Id. at 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc. Section 437c(f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action. (See Code Civ. Proc. Section 437c(n); Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 583.) Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc. Section 437c(o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at 583.)

DISCUSSION

Moving Party’s Argument

Moving Defendants argue that Plaintiff’s fourth and fifth causes of action fail as alleged against Westin Operator because the evidence establishes that Westin Operator had no employment relationship with and exercised no control over Defendant John Doe, the shuttle driver. Moving Defendants argue that Plaintiff’s fourth cause of action also fails as alleged against Wesco Specialist because the evidence does not establish that Defendant John Doe acted negligently, and thus Wesco Specialist cannot be held liable via respondeat superior. Here, Moving Defendants argue that Plaintiff was a trespasser attempting unauthorized entry onto the shuttle and thus only an ordinary duty of care applied. Moving Defendants argue that the evidence establishes that Defendant John Doe acted reasonably in response to Plaintiff’s attempt to force his way onto the shuttle, and thus Plaintiff cannot establish the breach element of his negligence cause of action. Moving Defendants argue that Plaintiff’s fifth cause of action fails as alleged against Wesco Specialist because the evidence shows that Wesco Specialist had no knowledge or reason to know that Defendant John Doe carried any risk of causing harm to Plaintiff.

Opposing Party’s Argument

Plaintiff argues that Moving Defendants’ motion fails because they have not addressed Plaintiff’s intentional tort causes of action. Plaintiff argues that triable issues of material fact exist as to whether Defendant John Doe was an employee of Westin Operator because a shuttle to and from an airport from a hotel is a core amenity of the hotel and because Westin Operator retained control over the shuttle service. Plaintiff argues that he was not a trespasser but rather a hotel guest who had already boarded its shuttle. Plaintiff argues that sanctions are warranted for Moving Defendant’s motion because it has not addressed three of Plaintiff’s causes of action.

Evidentiary Objections

Plaintiff's objections to the Declarations of Iliana Thomas and Todd Hartley are OVERRULED.

Merits of the Motion

Fourth Cause of Action: Negligence

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

Here, Moving Defendants first argue that Plaintiff's fourth cause of action fails as alleged against Westin Operator because the evidence shows that Westin Operator had no employment relationship with and exercised no control over Defendant John Doe at the time of the incident, and thus Westin Operator cannot be held vicariously liable.

When determining whether a worker qualifies as an employee or independent contractor for purposes of determining whether vicarious liability applies, the court applies the "ABC Test." "The ABC test presumptively considers all workers to be employees, and permits workers to be classified as independent contractors only if the hiring business demonstrates that the worker in question satisfies all of the following three conditions: (a) that the worker is free from the control and direction of the hirer in connection with the performance of the work, both under the contract for the performance of the work and in fact; and (b) that the worker performs work that is outside the usual course of the hiring entity's business; and (c) that the worker is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed." *Dynamex Operations W. v. Superior Court* (2018) 4 Cal.5th 903, 955-956 (*Dynamex*).

In support, Moving Defendants offer the declaration of Iliana Thomas ("Thomas"), the former Director of Wesco Specialist, who declares that Wesco Specialist "operated as an independent contractor providing shuttle transportation services pursuant to a written Shuttle Services Agreement with Westin." (Thomas Decl., ¶ 2.) Thomas declares that Wesco Specialist formerly employed Defendant John Doe. (Thomas Decl., ¶ 3.) Thomas further declares that Defendant John Doe "signed an acknowledgment confirming, among other things, that he was employed by Wesco---a third-party contractor---and not by the Westin hotel." (Thomas Decl., ¶ 5.) Thomas declares that Wesco Specialist was "solely responsible" for the hiring, training, supervision, compensation, benefits, and personnel records of Defendant John Doe. (Thomas Decl., ¶ 5.) Moving Defendants have also provided copies of the Shuttle Services Agreement between Westin Operator and Wesco Specialist and Wesco Specialist's Employment Acknowledgment, signed by Defendant John Doe, attached as Exhibits A and D to the Thomas Declaration, respectively. Thomas Decl., Exhs. A, D.)

The court has reviewed Exhibit A attached to the Thomas Declaration and finds that the Shuttle Services Agreement expressly provides that individuals providing shuttle transportation services to the Westin hotel from LAX are employees of Wesco Specialist and not of Westin Operator and that Wesco Specialist exercises control over payroll records, payroll deductions, benefits, liability insurance, and workers' compensation insurance. (Thomas Decl., Exh. A., p. 4.)

The court has also reviewed Exhibit D attached to the Thomas Declaration and finds that the Employment Acknowledgment provides that signatories, including Defendant John Doe, acknowledge that they are employees of Wesco Specialist and that Wesco Specialist will determine the signatory's pay rate and benefits. (Thomas Decl., Exh. D.)

Moving Defendants also offer the declaration of Todd Hartley ("Hartley"), an employee of Westin Operator, who declares that Defendant John Doe "is not employed by Westin. Westin did not participate in or have authority over the hiring of John Doe, did not provide him with training, and did not supervise or direct the manner in which he performed his work." (Hartley Decl., ¶ 3.)

The court finds that Moving Defendants' evidence is sufficient to establish that no triable issue of material fact exists regarding the ABC test, being that Defendant John Doe was free from the control and direction of Westin Operator, operation of shuttle buses is outside the usual course of hotel operations, and bus operations were the normal part of John Doe's occupation.

Next, Moving Defendants argue that Plaintiff's fourth cause of action fails because the evidence does not establish that Defendant John Doe acted negligently, such that there can be no respondeat superior liability. Here, Moving Defendants argue that Plaintiff was a trespasser who was attempting to enter the shuttle without authorization, and thus Moving Defendants owed only an ordinary duty of care.

Civil Code Section 2100 establishes a heightened duty of care owed by common carriers, providing that "[a] carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise that end to a reasonable degree of skill."

The common carrier-passenger relationship which creates a heightened duty begins when, "one, intending in good faith to become a passenger, goes to the place designated as the site of departure at the appropriate time and the carrier takes some action indicating acceptance of the passenger as a traveler" and ends when the passenger has safely exited the carrier's vehicle. (Orr v. Pacific Southwest Airlines (1989) 208 Cal.App.3d 1467, 1473, internal citation omitted; Simon v. Walt Disney World Co. (2004) 114 Cal.App.4th 1162, 1170.) Before the relationship is created between common carrier and passenger, the common carrier owes prospective passengers only a general duty of care rather than Section 2100's utmost standard of care. (Orr, supra, 208 Cal.App.3d at 1472.)

Civil Code Section 1714(a) establishes a general duty of ordinary care, and provides that "[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself."

Here, Moving Defendants offer excerpts from Plaintiff's deposition transcript, attached as Exhibit A to the declaration of Derek M. Mayor ("Mayor"). Plaintiff testified that he waited at terminal 5 of LAX for the shuttle to the Westin hotel, but the shuttle passed Plaintiff. (Mayor Decl., Exh. A, 33:4-6.) Plaintiff testified that he sprinted after the shuttle, caught up to it, and "tapped into the shuttle." (Mayor Decl., Exh. A, 33:7-15.) Next, Plaintiff testified that Defendant John Doe told Plaintiff that he refused to drive him to the hotel, after which Defendant John Doe "got off the shuttle." (Mayor Decl., Exh. A, 34:12-20.) Plaintiff subsequently clarified that Defendant John Doe asked Plaintiff why he hit the shuttle before Defendant John Doe told Plaintiff that he would not drive him. (Mayor Decl., Exh. A, 36:22-37:6.) Plaintiff testified that he believed that Defendant John Doe was upset because Plaintiff "hit" or "tapped the end of the shuttle" to get Defendant John Doe's attention. (Mayor Decl., Exh. A, 39:17-19.) Plaintiff testified that he believed that his striking the shuttle "frustrated [Defendant John Doe] enough to – to stop driving the shuttle or to stop driving [Plaintiff]." (Mayor Decl., Exh. A, 39:17-21.)

Next, Plaintiff testified that after Defendant John Doe exited the shuttle, Plaintiff remained inside the shuttle alone for a few minutes before exiting. (Mayor Decl., Exh. A, 36:10-12; 43:1-2.) Plaintiff testified that after Defendant John Doe reboarded the shuttle, Plaintiff attempted to reboard when Defendant John Doe closed the shuttle doors. (Mayor Decl., Exh. A, 36:13-15.) Plaintiff testified that when Plaintiff stepped onto the shuttle stairs, Defendant John Doe closed the shuttle door, after which Plaintiff opened the door, and Defendant John Doe kicked Plaintiff's right knee. (Mayor Decl., Exh. A, 43:7-24; 45:16-17.)

Moving Defendants also offer a video produced by Plaintiff of the incident, attached as Exhibit B to the Mayor Declaration. The court has reviewed the video and notes that it depicts the shuttle doors closing entirely before Plaintiff apparently forcibly opens the shuttle doors. (Mayor Decl., Exh. B.) It is not apparent from the video itself that Defendant John Doe made contact with Plaintiff's leg.

The court finds that Moving Defendants' evidence is sufficient to establish that the common carrier-passenger relationship had not yet begun as Defendant John Doe had not taken any action indicating his acceptance of Plaintiff as a passenger.

Indeed, Moving Defendants' evidence indicates that Defendant John Doe had expressly refused to transport Plaintiff.

Therefore, applying the ordinary standard of care, the court finds that Moving Defendants have met their burden of establishing that no triable issue of material fact exists as to whether Moving Defendants may be held liable for Defendant John Doe's conduct under respondeat superior. The court finds that the evidence indicates that Plaintiff's injuries were brought upon by himself after he attempted to make an unauthorized entry onto the shuttle. Further, regarding the evidence of Defendant John Doe kicking Plaintiff, an employer will not be held liable for an intentional tort that "did not have a causal nexus to the employee's work." (Lisa M. v. Henry Mayo Newhall Memorial (1995) 12 Cal.4th 291, 297.)

An intentional tort is only foreseeable for the purposes of the respondeat superior doctrine if "in the context of the particular enterprise an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among other costs of the employer's business." (Rodgers v. Kemper Constr. Co., (1975), 50 Cal.App.3d 608, 619.) For the harm to be foreseeable, the "employment must be such as predictably to create the risk employees will commit intentional torts of the type for which liability is sought." (Lisa M., supra, 12 Cal.4th at 302.)

The court finds that Moving Defendants' evidence does not indicate that the shuttle driver role carries an inherent risk of tortious injury. Therefore, the court finds that Moving Defendants have met their burden of establishing that no triable issue of material fact exists as to whether Moving Defendants may be held liable for the conduct of Defendant John Doe. Next, the burden shifts to Plaintiff. The court has previously found that Plaintiff's opposition is procedurally defective in that no evidence was presented, such that Plaintiff does not meet his burden.

Additionally, and in the alternative, pursuant to Code of Civil Procedure Section 437c(b)(3), the court exercises its discretion to grant Moving Defendants' motion for Plaintiff's failure to file a code-compliant separate statement.

Accordingly, Moving Defendants' Motion for Summary Judgment is GRANTED.

Fifth Cause of Action: Negligent Hiring, Supervision, and Retention

The necessarily elements for negligent hiring are: (1) that the employer hired the employee; (2) who was incompetent or unfit; (3) that the employer had reason to believe undue risk of harm would exist because of the employment; and (4) that harm occurred. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.)

First, Moving Defendants reiterate their argument that Plaintiff's fifth cause of action fails against Westin Operator because Defendant John Doe was not an employee of Westin Operator. The court refers to its previous discussion regarding Moving Defendants' evidence of Defendant John Doe's employment status.

Next, Moving Defendants argue that Plaintiff's fifth cause of action fails because there is no evidence that Defendant John Doe was unfit for his position or that Moving Defendants had reason to believe that undue risk of harm would exist because of Defendant John Doe's employment.

In support, Moving Defendants offer the Thomas Declaration, in which Thomas declares that Defendant John Doe received a copy of Wesco Specialist's Policy Against Harassment and Personal Appearance and Behavior, completed "Sexual Harassment and Abusive Conduct Prevention" training, and completed "Practice Safe Driving, Injury & Safety Reporting" training. (Thomas Decl., ¶ 6.) Copies of Defendant John Doe's acknowledgement of his receipt of Wesco Specialist's policy, a certificate confirming that Defendant John Doe completed the Sexual Harassment and Abusive Conduct Prevention training, and Wesco Specialist's employee training roster for 2021 are attached to the Thomas Declaration as Exhibits E, F, and G, respectively. (Thomas Decl., Exhs. E-G.)

Thomas also declares that to her knowledge, throughout the duration of Defendant John Doe's tenure at Wesco Specialist, he "did not engage in any prohibited behavior, and there are no disciplinary reports reflecting any prior complaints, misconduct, or similar incidents." (Thomas Decl., ¶ 6.)

Thomas further declares that prior to hiring Defendant John Doe, Wesco Specialist "conducted a background screening report on [Defendant John Doe's] criminal history, which found no issues." (Thomas Decl., ¶ 4.) A copy of Defendant John Doe's background screening report is attached to the Thomas Declaration as Exhibit C. (Thomas Decl., Exh. C.)

Finally, Thomas declares that Defendant John Doe "agreed to a series of driver qualifications as conditions for employment with Wesco, including that he could not have any license disqualification or suspensions, no felony charges, reckless driving charges, careless driving charges, or exhibition driving charges in the past five years, and no at-fault motor vehicle accidents within the past three years, among other things." (Thomas Decl., ¶ 3.) A copy of Wesco Specialist's driver qualifications, signed by Defendant John Doe, is attached to the Thomas Declaration as Exhibit B. (Thomas Decl., Exh. B.)

The court has reviewed the evidence and concludes that Moving Defendants have met their burden of establishing that no triable issue of material fact exists regarding whether Defendant John Doe was unfit and whether Moving Defendants had reason to believe that undue risk of harm would exist because of Defendant John Doe's employment as a shuttle driver.

The burden next shifts to Plaintiff to establish the existence of a triable issue of material fact. The Plaintiff has furnished no evidence in opposition. Therefore, Plaintiff has not met his burden.

In the alternative, the court exercises its discretion pursuant to Code of Civil Procedure Section 437c(b)(3) to grant Moving Defendants' motion for Plaintiff's failure to file a code-compliant separate statement.

Therefore, as only Plaintiff's fourth and fifth causes of action are alleged against Moving Defendants, Moving Defendants' Motion for Summary Judgment is GRANTED.

CONCLUSION

Based on the foregoing, Moving Defendants' Motion for Summary Judgment is GRANTED.

Wesco Services, Inc. and Westin Operator, LLC are ordered to file a proposed judgment consistent with this ruling and to give notice to Plaintiff.